

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
BRYAN MADERA,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Det. BRIAN PASTULA, Det.
MICHAEL SMYTH, Det. DAVIS ROJAS and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,

The basis of venue is:
CPLR 504 (3)

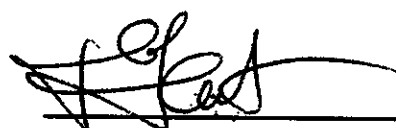
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

March 24, 2014

By:  **JONATHAN L. GILET, ESQ.**

Attorney for Plaintiff

888 Grand Central
Suite 1-O
Bronx, NY 10451
(718) 742-0200

RECEIVED
MAR 28 PM 2:42
CLERK
BRONX COUNTY

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. Brian Pastula, Shield No. 6782, Det. Michael Smyth, Shield No. 420, Det. David Rojas,
Shield No. 4393 of the Narcotics Division, 1 POLICE PLAZA, NY NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRYAN MADERA,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

CITY OF NEW YORK, Det. BRIAN PASTULA, Det.
MICHAEL SMYTH, Det. DAVIS ROJAS, and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,

Defendants.
-----X

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BRONX COUNTY

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF BRYAN MADERA

1. At the time of the commencement of this action, Plaintiff BRYAN MADERA was

and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about April 8, 2013, Det. BRIAN PASTULA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about April 8, 2013, at approximately 9 P.M., Det. BRIAN PASTULA was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about April 8, 2013, Det. MICHAEL SMYTH was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about April 8, 2013, at approximately 9 P.M., Det. MICHAEL SMYTH was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about April 8, 2013, Det. DAVIS ROJAS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about April 8, 2013, at approximately 9 P.M., Det. DAVIS ROJAS was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about April 8, 2013, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about April 8, 2013 at approximately 9 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about April 8, 2013 at approximately 9 P.M., at or near corner of Jerome Avenue and East 193rd Street, Bronx, New York, the plaintiff BRYAN MADERA was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine BRYAN MADERA.

14. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.

15. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That the defendants Det. BRIAN PASTULA, Det. MICHAEL SMYTH, Det. DAVIS ROJAS and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

17. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

18. That all criminal charges brought against plaintiff, which were brought under docket number 2013BX020654 in the Criminal Court of the City of New York, County of Bronx, regarding the incidents of April 8, 2013, were dismissed by Hon. William McGuire, a Judge of the Court, on June 17, 2013.

19. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of BRYAN MADERA.

20. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately seventy days.

21. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact and without being otherwise privileged, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

22. That during the unlawful arrest of plaintiff, and thereafter at the 46th Precinct, 2120 Ryer Avenue, Bronx, New York, defendants employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff including multiple invasive strip searches without an individualized articulable reasonable suspicion of the secreting of evidence underneath clothing or within a bodily cavity.

23. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable

basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

24. That said illegal and unlawful arrests without reasonable or probable cause are a matter of institutionalized policy and record and openly acknowledged or known by the defendants, and condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

25. Further, said wrongful arrests are a direct result of the institutionalized practice, policy and procedure of promoting arrest quotas, also often euphemistically known as 'productivity goals'.

26. Further, officers of the New York City Police Department, and especially and specifically officers of the 46th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches without individualized reasonable suspicion of the secreting of evidence inside a bodily cavity in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone

fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and often routine.

27. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

28. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas.

29. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused an institutionalized policy and procedure of strip searching innocent citizens, almost exclusively citizens of a racial minority, without a reasonable articulable suspicion of the secreting of evidence underneath clothing or within a bodily cavity.

30. That said wrongful strip search practice, policy and procedure was done, for among other reasons, to humiliate and subjugate certain populations of minority men.

31. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, KAISON SHAW on February 20, 2009 at the 46th Precinct; SHARON GUILLEBEAU on August 18, 2009 and again on September 23, 2009 at the 46th Precinct; DAVID PALUZZI on or about April 25, 2010 at the 46th Precinct; JEFFREY JACKSON on or about November 12, 2010; WILLIE REEVES on December 15, 2010 and February 18, 2011; KAMAMA COLEMAN at the 46th Precinct on April 6, 2011; JOSE SOSA on May 19, 2011 at the 46th Precinct; YAMRICK PARKER at the 46th Precinct on February 5, 2011; TYSHAWN HENIGAN at the 46th Precinct on June 19, 2012; and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/downloads/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

32. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

33. The herein above described actions and omissions, engaged in under the color

of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

34. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

35. That as a result of the foregoing, the plaintiff BRYAN MADERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF BRYAN MADERA

36. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 35 as though more fully set forth herein.

37. That on or about July 3, 2013, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on September 24, 2013, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

38. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

39. That on or about April 8, 2013 at approximately 9 P.M., at or near corner of Jerome Avenue and East 193rd Street, Bronx, New York, the plaintiff BRYAN MADERA

was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine BRYAN MADERA.

40. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

41. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.

42. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

43. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact or without other privilege, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

44. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the plaintiff BRYAN MADERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF BRYAN MADERA

47. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That on or about April 8, 2013 at approximately 9 P.M., at or near corner of Jerome Avenue and East 193rd Street, Bronx, New York, and thereafter following his arrest, at the 46th Precinct, 2120 Ryer Avenue, Bronx, New York, defendants employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff including multiple invasive strip searches without an individualized articulable reasonable suspicion of the secreting of evidence underneath clothing or within a bodily cavity.

49. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

51. That as a result of the foregoing, the plaintiff BRYAN MADERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BRYAN MADERA

52. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 51 as though more fully set forth herein.

53. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the Plaintiff without any basis in law or fact.

54. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the Plaintiff due to racism and prejudice and without any basis in law or fact.

55. That the defendants Det. BRIAN PASTULA and Det. MICHAEL SMYTH, Det. DAVIS ROJAS and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and testified against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

56. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

57. That all criminal charges brought against plaintiff, which were brought under docket number 2013BX020654 in the Criminal Court of the City of New York, County of Bronx, regarding the incidents of April 8, 2013, were dismissed by Hon. William McGuire, a Judge of the Court, on June 17, 2013.

58. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

59. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately seventy days.

60. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

61. That as a result of the foregoing, the Plaintiff BRYAN MADERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BRYAN MADERA

62. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 61 as though more fully set forth herein.

63. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

64. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrests of individuals, and in the utilization of invasive search procedures utilized without reasonable individualized articulable suspicion of the secreting of evidence underneath clothing or inside a bodily cavity.

65. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff BRYAN MADERA was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained

other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

66. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
March 24, 2014


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
BRYAN MADERA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-020

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept. , New York, New York 10007

Det. Brian Pastula, Shield No. 6782, Det. Michael Smyth, Shield No. 420,
Det. David Rojas, Shield No. 4393 of the Narcotics Division,
1 POLICE PLAZA, NY NY 10038

PLAINTIFF'S VERIFICATION

BRYAN MADERA affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


BRYAN MADERA